

M/S Bihariji Containers Pvt. Ltd. v. State of U.P.

Allahabad High Court · Division Bench · 21 March 2017 · Writ-C No. 32006 of 2016 · **Writ dismissed by adopting the even-date order in Writ-C No. 30898 of 2016.**

HEADNOTE

A consumer's writ to quash a 24.05.2016 demand for additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed. On 15.07.2016 a Division Bench (Krishna Murari and Arvind Kumar Mishra-I, JJ.) had, without prejudice, stayed that demand and directed listing with Writ Petition (C) No. 51884 of 2009, following an interim order in a similar 2009 petition. The Chief Justice's Court later dismissed this petition by reference to the order of even date in Writ-C No. 30898 of 2016, without independent reasons here.

FACTUAL SUMMARY

M/S Bihariji Containers Pvt. Ltd. challenged a demand notice dated 24.05.2016 seeking additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005. On 15.07.2016 a Division Bench connected the petition with Writ Petition (C) No. 51884 of 2009 and, following an interim order dated 07.10.2009 in Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited), restrained the respondents from demanding additional security until further orders. On 21.03.2017 the Chief Justice's Court dismissed the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security demand

HOLDING

The writ to quash a clause 4.20 additional-security demand was dismissed by adopting the order of even date in Writ-C No. 30898 of 2016. The 15.07.2016 order had, without prejudice, only restrained the licensee from demanding additional security pending disposal and directed listing with a connected 2009 petition. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd. Writ Petition No. 51844 of 2009, order dated 07.10.2009			1	Referred